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Rivas shuffles Assembly leadership deck

November 22, 2023 | Davis Enterprise, The (CA)
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OpenURL Link

Aguiar-Curry named majority leader

Who's up and who's down? When the news broke late Tuesday that new Assembly Speaker Robert Rivas picked new committee chairpersons and canned others, the Sacramento political sphere was immediately abuzz with talk of winners and losers.

The winners include Cecilia Aguiar-Curry, the Winters Democrat who was named Assembly majority leader, and Encino Democrat Jesse Gabriel, who is taking over the budget committee, though at a time of budget deficits. He's replacing Assemblyman Phil Ting of San Francisco, who said that the eight state budgets he helped put together have boosted California's efforts on child care, climate change and access to higher education and healthcare.

An apparent loser: Culver City's Isaac Bryan, kicked from the majority leader position to be made chairperson of the Natural Resources committee, who noted that the switch left the new speaker's inner leadership circle devoid of Black members.

But there's another big victor to emerge from Rivas' late-night reorg: YIMBYs.

Yes In My Backyard activists — who promote legislation meant to make it easier to build housing of all kinds, even if that comes at the expense of local control over development decisions — have been on a winning streak this year.

The chorus of lawmakers willing to argue that the state doesn't face a housing shortage, or that the state need not get involved has dwindled in recent years. By the end of the most recent legislative session, with Rivas at the helm of the Assembly, the Legislature passed an array of bills that fast-track "any flavor of affordable housing you could possibly want to build."

This latest round of appointments puts an exclamation point on that trend heading into the 2024 session. By elevating aggressively pro-housing members and demoting those who are less so, Rivas seems to be laying the institutional groundwork for an aggressively pro-housing legislature next year.

"Speaker Rivas has been consistent in his leadership on housing and also his desire to make the Legislature a place that passes more transformative housing policy," Matthew Lewis, a spokesperson for California YIMBY, said today. "From our perspective these committee assignments pretty much reflect that."

Some of the appointments, he added, are "about as good as it gets," Lewis added.

Topping the list of changes that pro-development activists are likely to be thankful for: San Diego Democrat Chris Ward is the new chairperson of the Assembly's housing committee.

Ward will be replacing Oakland Democrat Buffy Wicks, who is about as reliable a pro-housing legislator as one can find in the Legislature. But Wicks was an ardent Rivas backer and instrumental whip during his tumultuous play for the speakership position last year and her promotion to a higher position was assumed. But by swapping Wicks for Ward, Rivas is maintaining that committee's predictable pro-density course.

Ward's selection may send an additionally potent pro-housing signal. Last year, he introduced a strikingly ambitious bill that would have prioritized dense urban development while putting a cap on sprawl across the state. The idea

went down in flames, torched in part by builders' lobby. This appointment suggests that Rivas isn't inclined to punish Ward for his overreach.

Wicks, in the meantime, was given the top spot on the powerful appropriations committee.

In the Legislature, where virtually every bill with a price tag has to go before "approps" and where the chairperson has virtually unchecked power to pass, gut or kill bills without any of the normal checks that hamstring less chairs, that in itself is yet more good news for YIMBYs and their allies.

But Wick's ascension is also a notable change for the committee. Current chairperson Chris Holden, a Democrat from Pasadena, has been a reliable ally of organized labor and defender of tenant rights, but has also been more likely than Wicks to safeguard local control over development decisions. Rivas is removing Holden from the committee entirely. Unlike the other committee appointments that take effect immediately, this switch takes effect Jan. 22.

Over at the transportation committee, the elevation of first-term Suisun Democrat Lori Wilson bodes well for proponents of dense development near public transit hubs. Before joining the Legislature, Wilson was director of finance for the national homebuilding company, KB Homes.

Assemblyman Isaac Bryan on the Assembly floor at the state Capitol on March 27, 2023. Photo by Miguel Gutierrez Jr., CalMatters

Even the apparent demotion of Bryan from Assembly majority leader to mere chairperson of the Natural Resources committee carries significant implications for state housing policy. Earlier this year, that committee's chairperson, Arleta Democrat Luz Rivas, used her post to temper density-boosting bills along the coast and limit the scope of legislation that will let religious institutions build housing more easily.

Bryan, a member of the Assembly renters' caucus, is widely expected to be less of a YIMBY antagonist, especially when it comes to bills that boost affordable housing.

Bryan's successor as majority leader, Aguiar-Curry, was appointed by Rivas as speaker pro tem in July. In a statement, she said she shares Rivas's "commitment to collaboration" with all Assembly members, the Senate and the Newsom administration.

But Aguiar-Curry clashed with the Newsom administration after the governor vetoed her bill to require a human back-up driver in autonomous big rigs. "Calling this proposal a ban is a disheartening mischaracterization of the intent and process outlined in the bill," she said in a statement.

Crime and conflict of interest

The leadership shuffle among Assembly Democrats was expected after Rivas took over from Anthony Rendon on June 30, following a negotiated handover.

And some moves were telegraphed: Assembly Democrats got caught in the crossfire in July when the Public Safety committee held a bill to increase penalties for child sex trafficking. Rivas intervened, along with Gov. Gavin Newsom, and the committee reversed itself. The bipartisan bill became law — a departure from Democrats' general goal of reducing incarceration.

Now, Assemblyman Reggie Jones-Sawyer, a Los Angeles Democrat who became a focal point of the criticism, is losing his leadership of the committee.

The new Public Safety chairperson: Assemblyman Kevin McCarty, a Sacramento Democrat who has been leading education committees and who supported Rendon. He pledged "balanced and common sense policies" on crime.

In a statement, Rivas thanked Jones-Sawyer "for his work to bring needed reforms to our justice system," but also said "Californians have a right to be safe in their homes and on their streets." Last month, Rivas appointed a select committee to tackle the surge in high-profile smash-and-grab retail crimes.

In another noteworthy move, Assemblywoman Mia Bonta of Oakland is out as chair of the Budget subcommittee on public safety after questions were raised about conflict of interest because her husband is Attorney General Rob Bonta. She eventually recused herself from decisions affecting his budget.

Her consolation prize: Leadership of the Health Committee, where she'll take over from Assemblyman Jim Wood, who gets to be speaker pro tem in his final session, since he's already announced he isn't seeking reelection next year.

While Rivas is elevating many of his supporters, he maintained that Assembly Democrats are not divided heading into an election year when all 80 seats are on the ballot.

"The Assembly is unified and ready to deliver," Rivas said in a statement. "That's what Californians expect from their Legislature and that's what this team will achieve."

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- **Citation (apa Style)**
  Christopher, B. (2023, November 22). Rivas shuffles Assembly leadership deck.*Davis Enterprise, The (CA).* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/1957CFCDB4D31DF8.